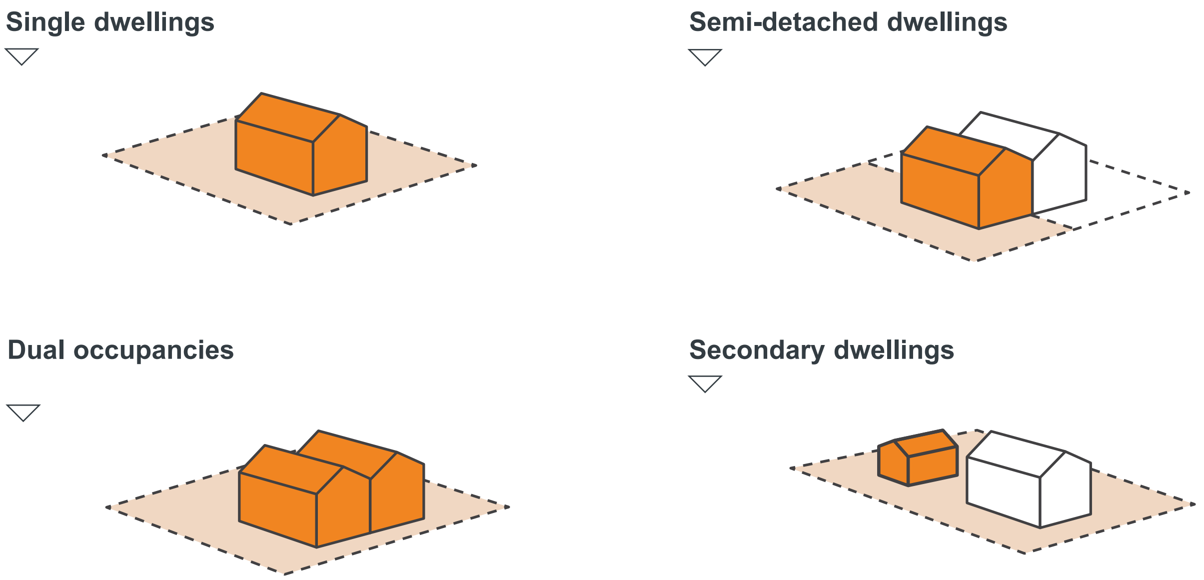
E

PART E - SINGLE DWELLINGS, SEMI-DETACHED DWELLINGS, DUAL OCCUPANCIES AND SECONDARY DWELLINGS

E1 Land to which Part E applies

Part E applies to development for the purpose of single dwellings, semi-detached dwellings, dual occupancies and secondary dwellings.

Figure E1.1 - Types of dwellings Part E applies to



E2 Design Quality

E2.1 Design of dwelling houses, semi-detached dwellings, dual occupancies and secondary dwellings

Objectives

New buildings and alterations and additions should:

O1. Reflect the dominant building pattern of the streetscape with regard to the location, spacing and proportion of built elements in the streetscape.

O2. Complement and conserve the visual character of the street and neighbourhood through appropriate building scale, form, detail and finish.

O3. Reinforce existing streetscape features such as building setbacks, alignments, heights and fence design.

O4. Ensure that development conserves and respects significant streetscape items (such as street tree planting) and points of interest (such as views to waterways).

Street presentation

Controls	
C1.	Buildings adjacent to the street should address the street by having a front door and/ or living room addressing the street. The frontage of buildings should by their design, and the location of entries (including pedestrian pathways), be readily apparent from the street.
C2.	Roller shutters, security bars and grilles are not permitted on window and door openings that have a frontage to the street or that are adjacent to public open space.

Front facade articulation

Controls	
C3.	New buildings and additions should be designed with an articulated front façade - See Figure E2.1. The front façade should comply with the following requirements: • Where a garage is attached to a dwelling it must not be located within the primary façade; and • The secondary building façade should be set back a minimum of 1.5 metres from the primary building façade.
C4.	Entry alcoves recessed into, or protruding from, the front facade will not be considered as an articulated front facade.
C5.	Secondary building façade must not exceed 55% of the total site frontage and must be setback 1.5m from the primary building façade.
C6.	Primary building façade must not exceed 40% of the total site frontage.
C7.	The ground floor of the primary building facade must contain a habitable room with a window.
C8.	Upper levels, including balconies must not extend further forward than the ground floor primary or secondary façade.

Refer to Figure E2.1

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Roof design

Controls	
C9.	Use similar or compatible roof pitch, form and materials and colours to such elements identified in the Streetscape Character Analysis as being predominant.
C10.	Where it is considered that the streetscape will not be significantly altered and on the basis of improving the solar access or view corridors of nearby residential properties, Council may consider lower roof pitches than 25 degrees.
C11.	Dormers are not to have a height of more than 1.5 metres from base to ridge.

Verandahs

Controls	
C12.	Existing original verandahs should be retained.
C13.	The enclosure of original verandahs visible in the streetscape is not permitted. Enclosed verandahs are intrusive elements and should be re-opened and restored wherever possible.

Balconies

Controls	
C14.	The enclosure of balconies visible in the streetscape is not permitted. Existing enclosed balconies should be re-opened and restored wherever possible.

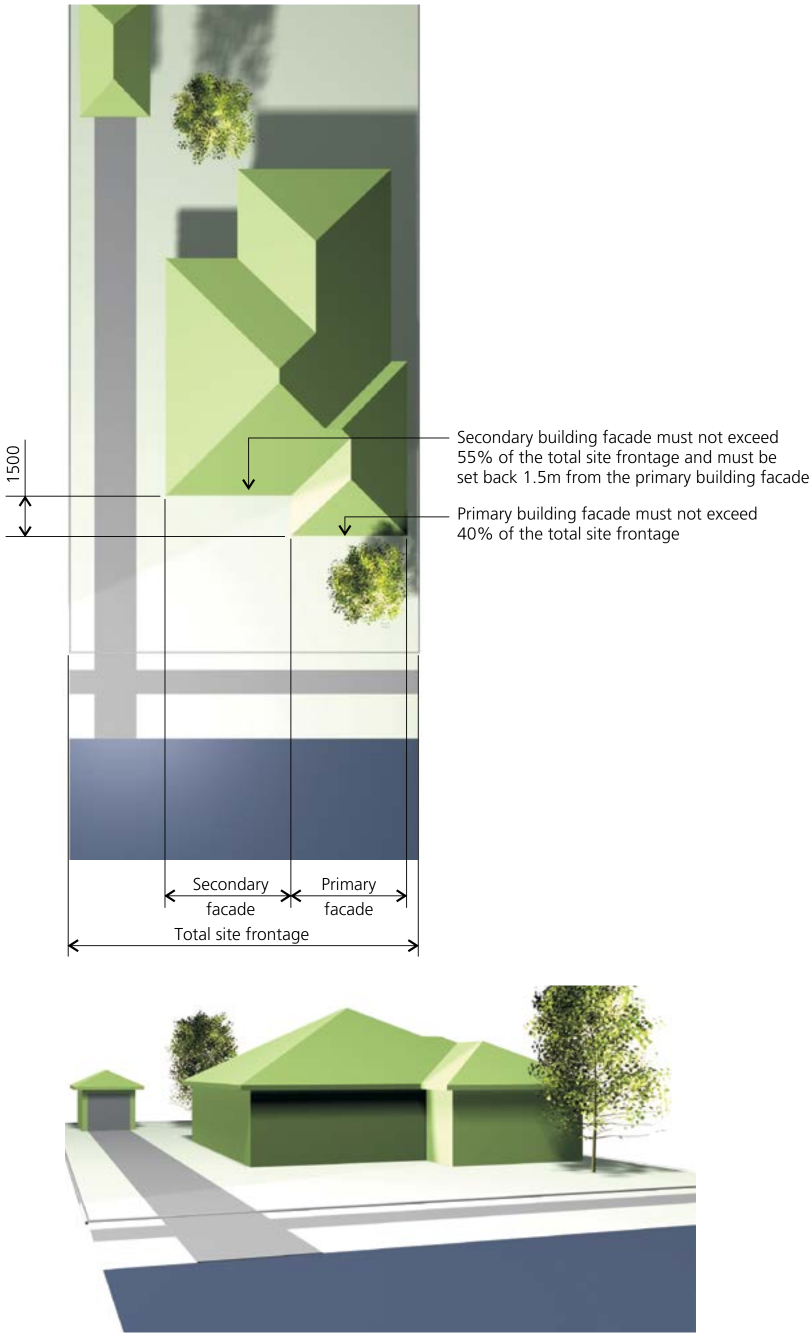

Figure E2.1 - Example of front facade articulation control

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Additions to semi-detached dwellings

Controls	
C15.	Any alteration and addition to an individual semi should recognise it as being one pair or group of similar, identical or complementary buildings. In this regard, any extension should be carefully integrated with the building to which it is attached, both in its present form and on the assumption that the adjoining owner may wish to undertake extensions in the future.
C16.	First floor additions should be set back from the principal street frontage of the building, in order to maintain a substantial portion of the existing roof unaltered over the front of the building and to locate the bulk of new development towards the rear. First floor additions should be set back beyond the apex or main ridge of the principal roof form of the building and should retain chimneys
C17.	The choice of materials utilised on additions and alterations to a semi-detached dwelling should complement the building as a whole.

Design of attached dual occupancies

Objective

O5. Ensure that the design of attached dual occupancies complements and enhances the character and streetscape of their locality and protects the amenity of neighbouring properties.

Controls	
C18.	Attached dual occupancies where both dwellings are oriented towards the same street frontage are to ensure that one dwelling does not extend into the rear yard further than 5 metres beyond the other dwelling.
C19.	Attached dual occupancies should reflect the building form and roof lines of adjoining dwellings, where a pattern is established by a group of adjoining houses.

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Driveways and access ways for attached dual occupancies

Controls	
C20.	No more than one third of the width of the frontage of a property should be used for driveways and access ways.
C21.	The provision of access to garages and additional parking spaces for dual occupancy dwellings should minimise paved surfaces to the front of the building.
C22.	Garages for each dwelling within an attached dual occupancy should be single car width only.
C23.	Where all existing dwellings are located to the left or right side of their respective allotment and have a side driveway, this pattern should also be observed by the design of the attached dual occupancy.

Driveways and access ways for secondary dwellings

Controls	
C24.	Access to parking spaces for both the secondary dwelling and principal dwelling are to be via a common or shared driveway.
C25.	Where the principal dwelling has a secondary street frontage, a second vehicular access for the secondary dwelling is permitted.

Note: Parking is not required for a secondary dwelling.

E2.2 Materials, colour schemes and details

Objectives

O1. To ensure that the choice of external materials, colour schemes and building details on new development and existing houses visible from a public place, reinforces and enhances any identifiable visual cohesiveness or special qualities evident in the street and the adjoining locality.

O2. To encourage complementary and sympathetic wall treatments on new development and existing houses that are consistent with the architectural style of existing dwellings found in the street and the adjoining locality.

O3. To encourage roof forms and materials consistent with the positive qualities evident in the street and the adjoining locality.

O4. To encourage verandahs/balconies etc. that are consistent with original structures evident in the street and the adjoining locality.

O5. To permit flexibility in the choice of materials to meet the practical requirements of energy efficiency, construction and maintenance costs.

Controls

The colour and surface finish of external building materials should minimise the overall visual impact of new development and be sympathetic to the surrounding locality as identified in the relevant Character statement and the Streetscape Character Analysis submitted with the application.

Walls/ masonry

Controls	
C1.	Use darker face brick in streetscapes which predominantly exhibit this external finish.
C2.	Retain or incorporate existing sandstone fences, walls or wall bases into the design of the building.

Roof finish

Controls	
C3.	Roof colours and materials shall be compatible to such elements identified as being predominant in the Streetscape Character Analysis.

Balconies

Controls	
C4.	First floor balcony balustrades facing the street should use a different material to the main wall finish.

Colour schemes

Controls	
C5.	Subject to the Streetscape Character Analysis, no large expansive surface of predominantly white, light or primary colours which would dominate the streetscape or other vista should be used.
C6.	New development should incorporate colour schemes that have a hue and tonal relationship with the predominant colour schemes found in the street.
C7.	Matching buildings in a row should be finished in the same colour, or have a tonal relationship.

General

Controls	
C8.	All materials and finishes utilised should have low reflectivity.

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E3 Environmental criteria and residential amenity

E3.1 Visual and acoustic privacy

Objectives

O1. Ensure the siting and design of a building provides a high level of visual and acoustic privacy for residents and neighbours in dwellings and private open space.

O2. To provide personal and property security for residents and visitors.

Controls	
C1.	Openable first floor windows should be located so as to face the front or rear of the building. Where it is impractical to locate windows other than facing an adjoining building, the windows should be off-set to avoid a direct view of windows in adjacent buildings.
C2.	Balconies should be located so as to face the front or rear of the building. No balconies are permitted on side elevations.
C3.	Provide a minimum sill height of 1.5 metres from finished floor level to windows on a side elevation which serves habitable rooms and has a direct outlook to windows or principal private open space (not being front yard) of adjacent dwellings or alternatively use fixed obscure glass.
C4.	Upper level balconies to the rear of a building should be set back a minimum of 1.5 metres from any side boundary and should have a maximum depth of 1.8 metres.
C5.	Upper level balconies will not be permitted when the upper level setback is less than 6.0 metres from the outer face of the balcony.
C6.	Provide suitable screen planting on a rear boundary that will achieve a minimum mature height of 6.0 metres where the rear upper floors are proposed to be less than 7.0 metres off a rear boundary.
C7.	Ground floor decks, patios and the like should not be greater than 500mm above natural ground level. If structures such as these are expansive and are sought on sloping ground, they should be designed to step down in relation to the topography of the site.

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Controls	
C8.	Where the visual privacy of adjacent properties is likely to be significantly affected from windows, doors and balconies, or where external driveways and/or parking spaces are located close to bedrooms of adjoining buildings, one or more of the following alternatives are to be applied: a) Fixed screens of a reasonable density (minimum 85% block out) should be provided in a position suitable to alleviate loss of privacy; b) Where there is an alternative source of natural ventilation, windows are to be provided with translucent glazing and fixed permanently closed; c) Windows are off-set or splayed to reduce privacy effects; d) An alternative design solution is adopted which results in the reduction of privacy effects; and e) Suitable screen planting or planter boxes are to be provided in an appropriate position to reduce the loss of privacy of adjoining premises. Note: This option will only be acceptable where it can be demonstrated that the longevity of the screen planting has been provided for eg. Automatic watering systems.
C9.	The introduction of acoustic measures to reduce traffic/aircraft noise should not detract from the streetscape value of individual buildings.
C10.	Habitable rooms for detached dual occupancy development are to have a minimum separation of nine (9) metres.

Use of rooftops of buildings and garages

Controls	
C11.	No trafficable outdoor spaces are permitted on the uppermost rooftop of a building or on garage roofs, such as roof decks, patios, gardens and the like.

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E3.2 Access to views

Objectives

O1. To protect and enhance opportunities for vistas and public views from streets and public places.

O2. To ensure views to and from the site are considered at the site analysis stage.

O3. To recognise the value of views from private dwellings and encourage view sharing based on the following four controls.

O4. To recognise the value of view sharing whilst not restricting the reasonable development potential of the site.

O5. Protect and enhance scenic and cultural landscapes.

To determine whether a development is satisfactory in relation to the Objectives pertaining to access to views, the following controls will be applied:

Controls	
C1.	Development should seek to protect water views, iconic views and whole views. Water views are valued more highly than land views. Iconic views (eg of the Harbour Bridge or the City skyline) are valued more highly than views without icons. Whole views are valued more highly than partial views (eg a water view in which the interface between the land and water is visible is more valuable than one in which it is obscured). An icon should be a prominent identifying feature of the landscape and should be commonly held by the wider community as having iconic status.
C2.	Development should seek to protect views from the front and rear of buildings and where views are obtained from a standing position. The expectation to retain side views and sitting views is often unrealistic.
C3.	Development should seek to protect views from living areas and minimise the extent of impact. The impact on views from living areas is more significant than from bedrooms or service areas (though views from kitchens are highly valued because people spend so much time in them). The impact may be assessed quantitatively, but in many cases this can be meaningless. For example, it is unhelpful to say that the view loss is 20% if it includes the Harbour Bridge. Council will attempt to assess the view loss qualitatively as negligible, minor, moderate, severe or devastating.
C4.	Development in view affected areas should not only be designed to meet relevant development controls but also be designed to achieve view sharing. A development that complies with all planning controls is more reasonable than one that breaches them. Where an impact on views arises as a result of non-compliance with one or more planning controls, even a moderate impact is unreasonable. A complying proposal of a more skillful design could provide the applicant with the same development potential and amenity and reduce the impact on the views of neighbours.
C5.	Ensure development in foreshore and peninsula localities do not adversely impact upon views to and from Parramatta River and Sydney Harbour, from within and outside the local government area.
C6.	Development applications in foreshore and peninsula localities are required to include photomontages or computer modelling to illustrate the visual effects of the proposal as viewed from nearby public domain within and outside the LGA.

Note: In some cases, Council will insist on the erection of height poles/building templates to indicate the height of the proposed development together with written and/or photographic montages to ensure that view losses are minimal. Template construction is to be to the satisfaction of Council officers and is to be certified by a registered surveyor upon erection.

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E4 General Controls

E4.1 Frontage and dwelling width

Objective

O1. To ensure lot dimensions are able to accommodate residential development and provide adequate open space and car parking consistent with the relevant requirements of this DCP.

Controls	
C1.	Any dwelling within a dual occupancy or semi-detached dwelling development is to have a minimum width of 7m if the dwellings have parking accessed from the primary street and do not have consolidated basement parking with a single entry or parking accessed from a rear lane or secondary frontage. The minimum width may be reduced to 5m if the dwellings have consolidated basement parking with a single entry, or parking accessed from a rear lane or secondary frontage.

Note: Refer to the Canada Bay Local Environmental Plan for minimum frontage requirements.

E4.2 Building setbacks

Objectives

O1. To integrate new development with the established setback character of the street.

O2. Preserve significant vegetation which contributes to the public domain and allows for street landscape character to be enhanced.

O3. Ensure adequate separation between buildings consistent with the established character and rhythm of built elements in the street.

O4. To ensure adequate separation between buildings for visual and acoustic privacy.

O5. Maximise solar access to achieve amenity for neighbours.

Front setbacks - primary street

Controls	
C1.	The front setback of all residential buildings is to be a minimum of 4.5 metres or no less than the Prevailing Street Setback, whichever is the greater. The “Prevailing Street Setback” is the setback calculated by averaging the setback of five (5) adjoining residential properties on both sides of the development. **(Refer Figure E4.1)** Where there are fewer than five residential properties or a non-residential use property between a street end or corner and the development site, the “Prevailing Street Setback” is the setback calculated by averaging the setback of the five next residential properties fronting the street (if any) on both sides of the property. **(Refer Figure E4.2)** *Note: In many instances, the front setback of buildings in Canada Bay is 7.5 metres or greater and development in these areas will be required to comply with this prevailing setback.*
C2.	No balconies, entry porches or verandahs are permitted to encroach within the front setback. The only encroachments permitted within the front setback are restricted to eaves and awnings for weather protection but no supporting columns or posts.
C3.	Secondary dwellings must be located behind the front building line of the principal dwelling;

Note: On a site with two street frontages, the primary street is considered to be the one to which the property is addressed.

Front setbacks - parallel road lot

Controls	
C4.	If the secondary street (other than a lane) is at the rear of the property, any dwelling facing the secondary street is to use the secondary street as its primary street and be designed to comply with the Front setback – primary street controls.

Front setbacks - corner lot

Controls	
C5.	If the secondary street (other than a lane) is at the side of the property, any dwelling proposed to the rear of the site must acknowledge the prevailing street setback of the secondary street. **(Refer Figure E4.3)**

Side setbacks – single frontage or parallel road lot

Controls	
C6.	All developments are to comply with the following numerical requirements:

Development	Minimum distance from side boundary of parent lot
Dwelling houses	• Single storey dwellings are to be set back a minimum of 900mm from side boundaries. • The second storey of all dwellings are to be set back a minimum of 1500mm from side boundaries.
Dual occupancies	• Single storey dual occupancies are to be set back a minimum of 900mm from side boundaries. • The second storey of all dual occupancies is to be set back a minimum of 1500mm from side boundaries.
Semi-detached dwellings	• Single storey semi-detached dwellings are to be set back a minimum of 900mm from side boundaries of the parent lot. • The second storey of all semi-detached dwellings is to be set back a minimum of 1500mm from side boundaries of the parent lot.
Secondary dwellings	• All walls are to be set back a minimum of 1500mm.

Note 1: Upper floor setbacks may be achieved by stepping the building in, integrating any proposed upper floor within the roof form or by setting back both the ground and first floors from the side boundaries.

Note 2: Sites that have more than one street frontage (other than a lane) will have additional setback requirements.

Side setbacks – corner lot

Controls	
C7.	If two dwellings are proposed with one behind the other then any dwelling that faces the primary street must have a secondary street (side setback) of a minimum of 2m for the first 25m measured from the corner.
C8.	If two dwellings are proposed with one behind the other then the prevailing street setback for the secondary frontage is to be applied from 25m from the corner to the existing rear boundary of the site.

(Refer Figure E4.4)

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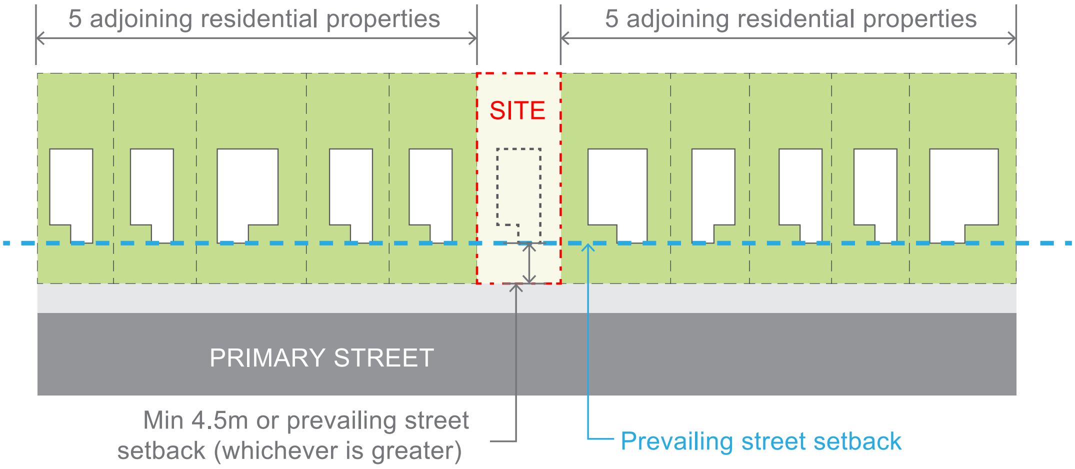

Figure E4.1 Calculation of the prevailing street setback

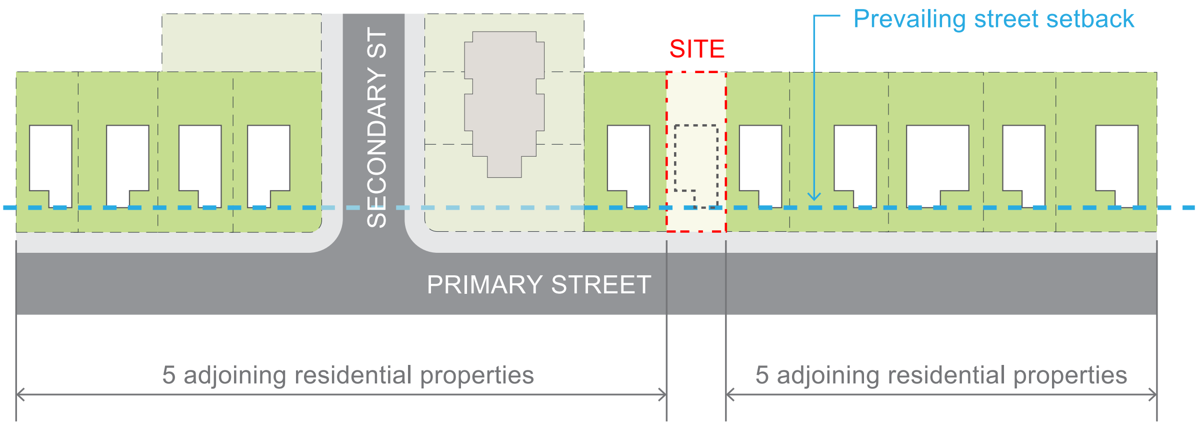

Figure E4.2 Calculation of the prevailing street setback near corner sites

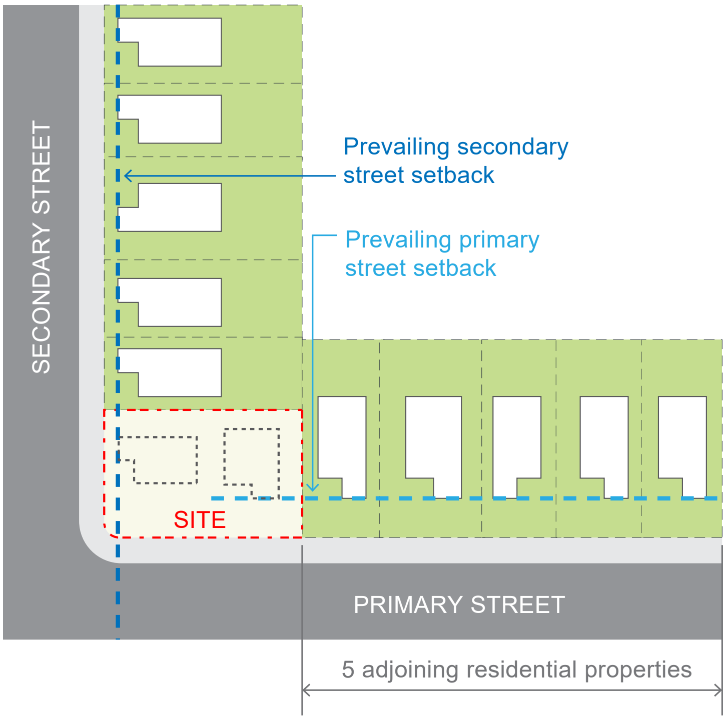

Figure E4.3 Calculation of the prevailing street setback on a corner development site (second dwelling)

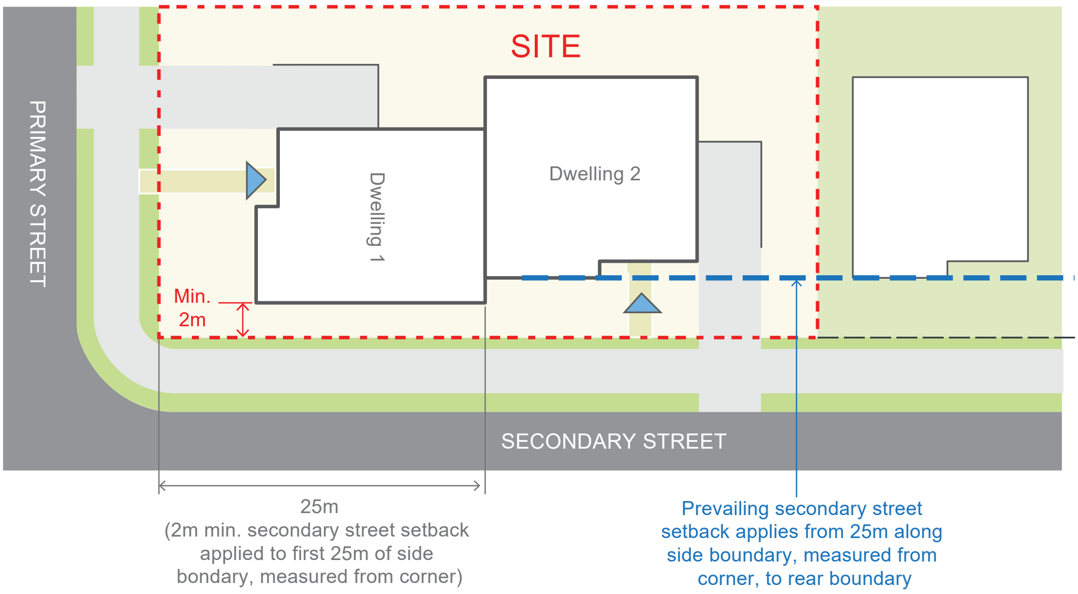

Figure E4.4 Calculation of side setbacks on a corner lot

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Rear setbacks – single street frontage

Controls	
C9.	All development (not including an outbuilding or secondary dwelling) is to have a minimum rear setback of 6.0 metres measured from the outside face of the development (wall, balcony, deck, post, roof etc). Refer to Canada Bay LEP definition of 'building line or setback'.
C10.	Any living room located on an upper floor is to have a minimum rear setback of 9.0m.
C11.	A secondary dwelling is to have a minimum rear setback of 3.0m.

(Refer Figure E4.5)

Rear setbacks – corner lot

Controls	
C12.	If dwellings are designed to address different street frontages then the dwelling oriented to the secondary frontage shall have a minimum setback to the rear boundary of the parent lot of 1.5 metres and a minimum setback to the side boundary (at rear of dwelling) of 4 metres. **(Refer Figure E4.6)**
C13.	Any living room located on an upper floor is to be oriented towards the street frontage, and not extend through to the rear, to minimise overlooking of side and rear boundaries. Note: For a single dwelling refer to single street frontage controls.

Basement setbacks

Controls	
C14.	Basement excavation for all development is limited to the area of the building at ground level. The excavation setback includes the driveway access to the basement.
C15.	The outer edge of excavation, piling and all subsurface walls including driveway excavation to basement car parking for dwelling houses should not be less than 900mm from any boundary.
C16.	A basement should not result in a building departing from the prevailing street setback.
C17.	A basement must generally be constructed below the existing ground level and remain consistent with the definition of basement in the Canada Bay LEP.

Outbuildings

Controls	
C18.	Outbuildings are to be located behind the main building alignment and should have a minimum setback of 900mm to side and rear boundaries. However, reduced side and rear boundary setbacks may be considered on merit where: a) they are consistent with the setbacks of outbuildings in the vicinity; b) they require no maintenance (including roof gutters); c) there are no adverse impacts to the amenity of the adjoining properties; and d) the total area of all outbuildings (including any secondary dwellings) does not exceed 35m^2.

Advisory Notes

Notwithstanding compliance with the above numerical controls, Council may require building setbacks to be increased if necessary to reduce bulk, overshadowing, visual impact, view loss, privacy concerns and to retain existing trees on site.

Any Foreshore Building Line will continue to apply and overrides any setback provisions in this plan.

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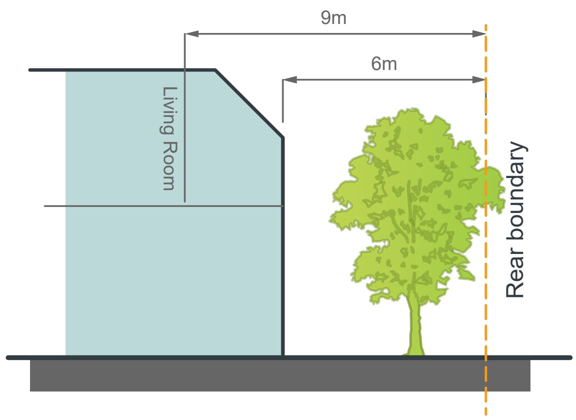

Figure E4.5 Minimum rear setback control for single street frontage lots

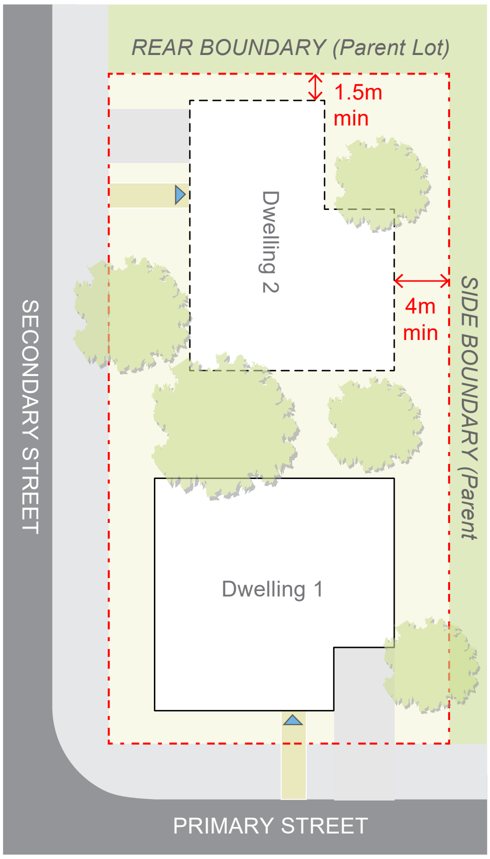

Figure E4.6 Rear setback controls for corner lots

E4.3 Street orientation and presentation

Objectives

O1. Ensure that development contributes to the activity, safety, amenity and quality of streets and the public domain.

O2. Present appropriate frontages to adjacent streets and public domain in terms of scale, finishes and architectural character.

O3. Provide legible and accessible entries from the street and the public domain.

O4. Minimise and ameliorate the effect of blank walls (with no windows or entrances) at the ground level.

O5. Minimise amenity impacts upon adjoining sites.

Controls	
C1.	Buildings shall be aligned and oriented to all street frontages.
C2.	At a minimum, the front façade of a dwelling shall orientate the front door and a window of a habitable room on the ground floor to address the principal street frontage. If the site has more than one street frontage and more than one dwelling is proposed then this is to be applied to all frontages.

(Refer Figure E4.7 to Figure E4.9)

Figure E4.7 Undesired development - dwellings not orientated towards the street frontage

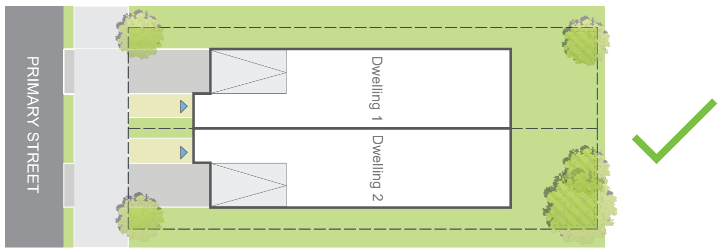

Figure E4.8 Desired development - dwellings are orientated towards the street frontage

Figure E4.9 Desired development on lots with more than one street frontage - dwellings are orientated towards all streets

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E4.4 Height of buildings

Objectives

O1. To ensure that buildings are compatible with the height, bulk and scale of the existing and desired future character of the locality.

O2. To minimise visual impact, disruption of views, loss of privacy and loss of sunshine to existing residential development.

O3. To minimise the adverse impact on Conservation Areas, Heritage Items and contributory buildings.

O4. To reduce the visual impact of development when viewed from the Parramatta River as well as other public places such as parks, roads and community facilities.

Controls	
C1.	Single dwellings, dual occupancies and secondary dwellings are not to exceed the building height plane projected at an angle of 45 degrees over the site from a vertical distance of 5.0 metres above ground level at any boundary of the site.
C2.	The following maximum building storey limits must not be exceeded:

Refer to Figure E4.10, Figure E4.11, Figure E4.12, Figure E4.13 and Figure E4.14

Single street frontage

Dwelling type	Maximum storeys
Dwelling house	Two (2) storeys
Attached dual occupancy	Two (2) storeys (dwellings side by side)
Detached dual occupancy	Two (2) storeys (dwellings side by side)
Semi-detached dwelling	Two (2) storeys (dwellings side by side)
Secondary dwelling	Two (2) storey if within principal dwelling One (1) storey if rear dwelling
Outbuilding	One (1) storey

Two or more street frontages

Dwelling type	Maximum storeys
Dwelling house	Two (2) storeys
Attached dual occupancy	Two (2) storeys (dwellings side by side) Two (2) storeys front dwelling, two (2) storey rear dwelling, if rear dwelling is facing secondary frontage
Detached dual occupancy	Two (2) storeys (dwellings side by side) Two (2) storeys front dwelling, one (1) storey rear dwelling, if both dwellings face primary frontage Two (2) storeys front dwelling, two (2) storey rear dwelling, if rear dwelling is facing secondary frontage
Semi-detached dwelling	Two (2) storeys (dwellings side by side)
Secondary dwelling	Two (2) storey if within principal dwelling One (1) storey if rear dwelling
Outbuilding	One (1) storey

Internal lot

Dwelling type	Maximum storeys
Any dwelling	One (1) storey
Outbuilding	One (1) storey

Note 1: Reference should be made to the Building Height Maps which accompany the Canada Bay Local Environmental Plan.

Note 2: On a site with two street frontages, the dwelling facing the primary street frontage is considered to be the front dwelling.

Note 3: For the purpose of calculating the number of street frontages a lane is not considered to be a street frontage.

Note 4: Refer to definitions in the Canada Bay LEP.

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Attics above dwellings

Controls	
C3.	The use of an attic room within the roof space of a dwelling house is permitted for habitable purposes, provided that: a) no external balconies are proposed for the attic room; b) the attic room does not increase the bulk of the building; c) it does not compromise the privacy of adjacent properties.

Attics above garages and outbuildings

Controls	
C4.	A single storey structure with an attic above is only permissible if: a) it is adjacent to a rear lane; b) the height does not exceed 5.4m; c) amenity to adjacent sites is maintained; d) No external balconies are proposed for the attic room; e) It does not compromise the privacy of adjoining properties; f) The roof pitch of a rear lane building must be between 30º and 40º; g) Any structure adjoining a rear lane is to be clearly subservient to the principal dwelling.

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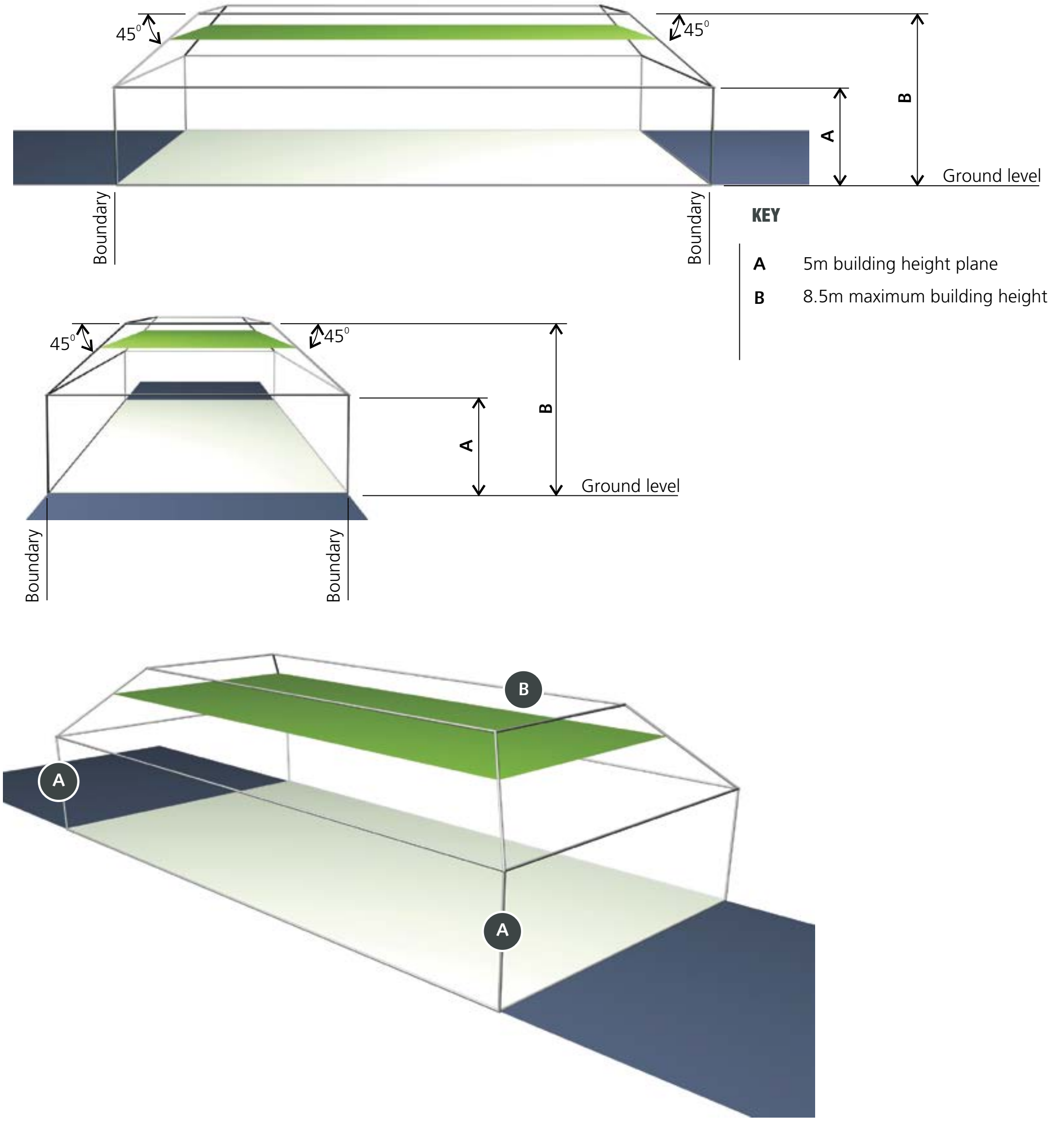

Figure E4.10 Height plane envelope on a level site

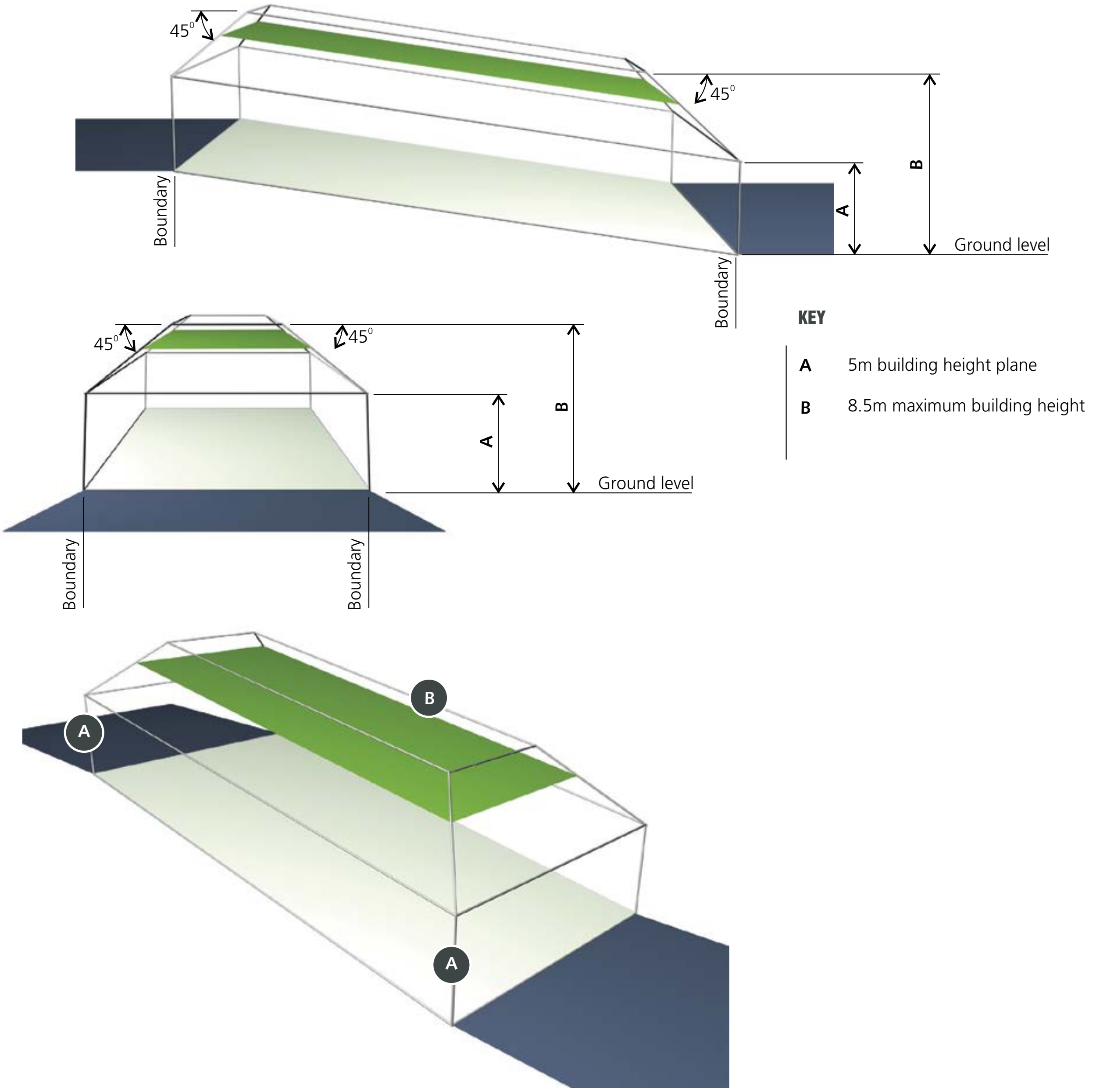

Figure E4.11 Height plane envelope on a sloping site

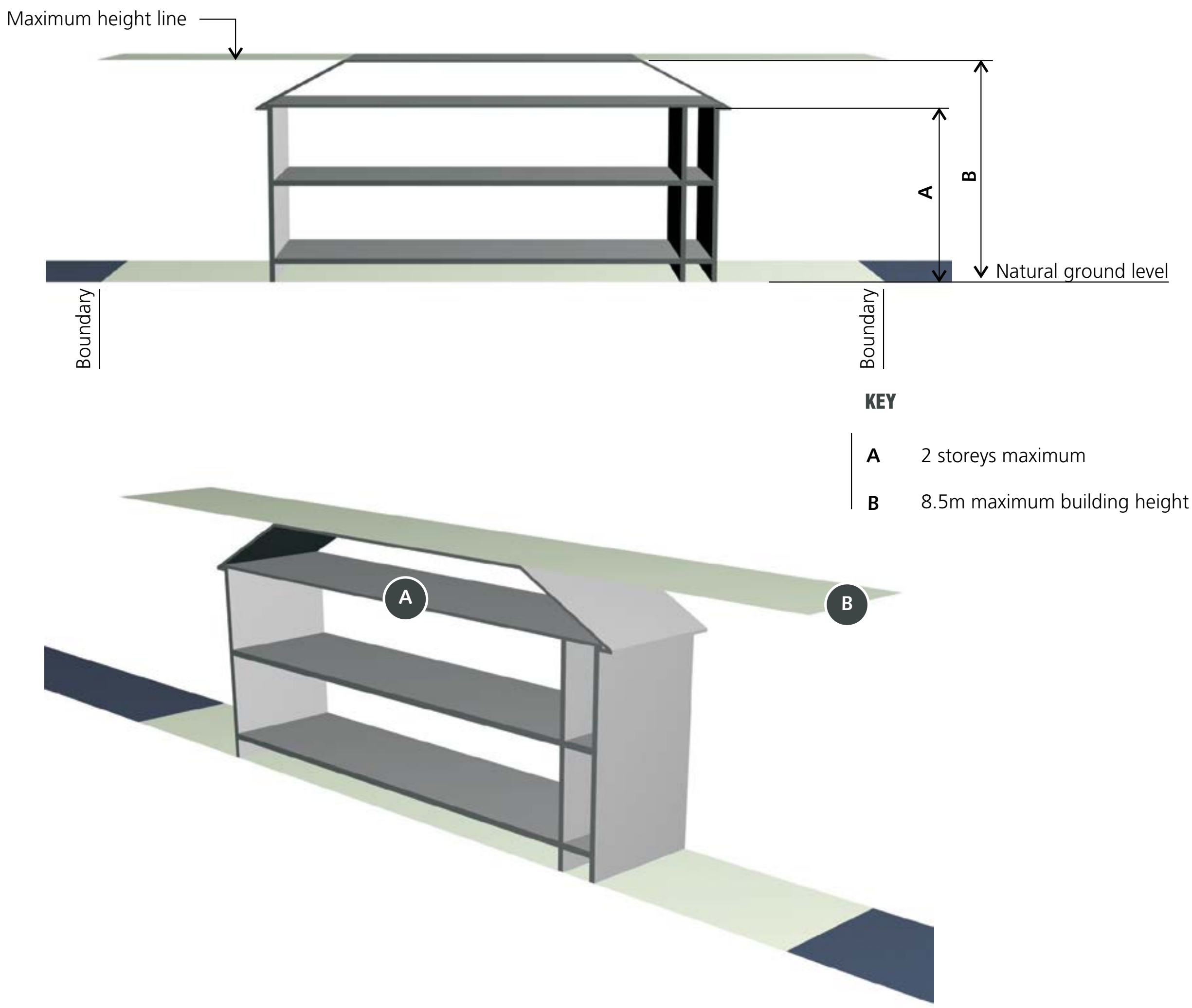

Figure E4.12 Maximum building height and maximum number of storeys on a level site

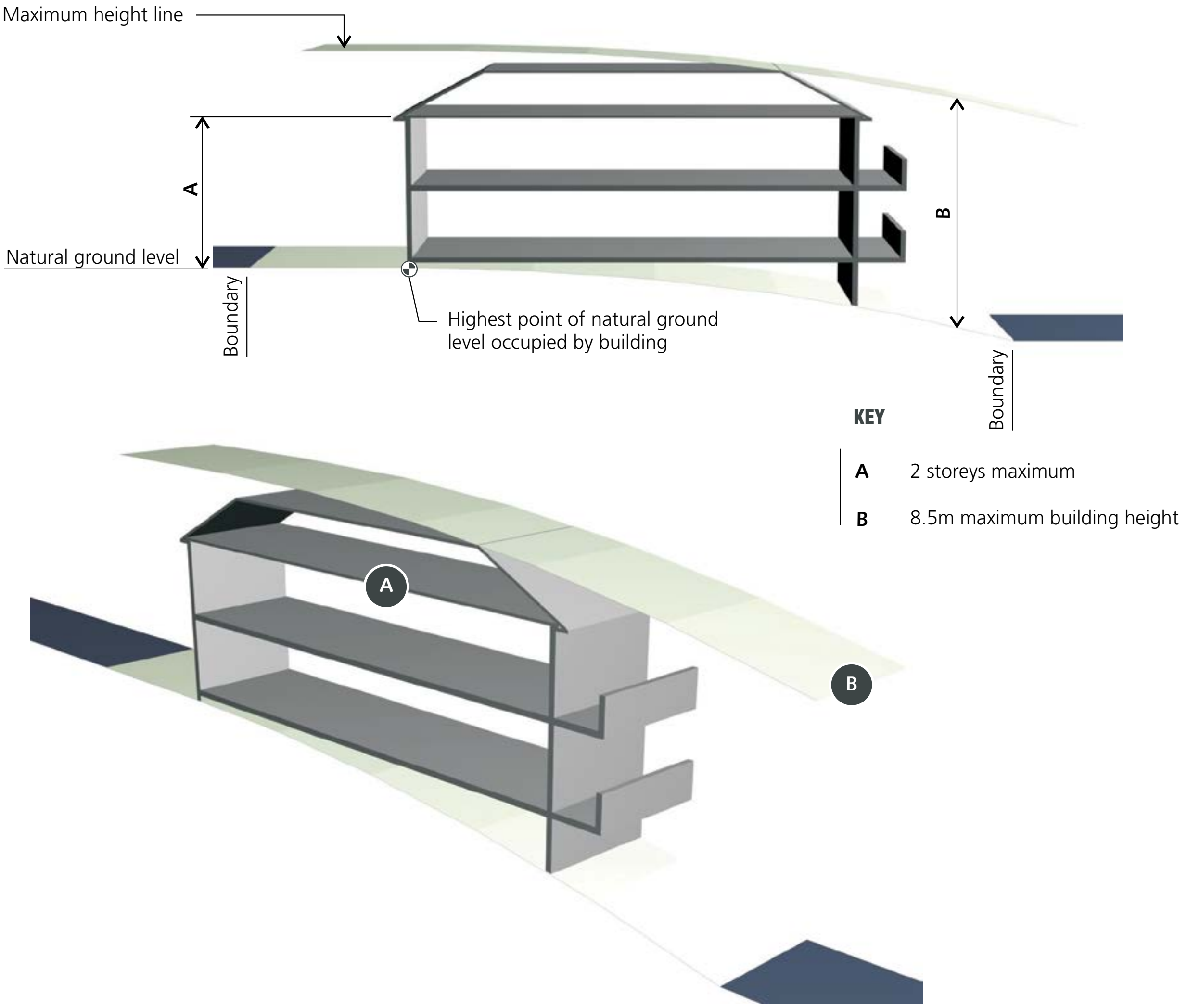

Figure E4.13 Maximum building height and maximum number of storeys on a sloping site

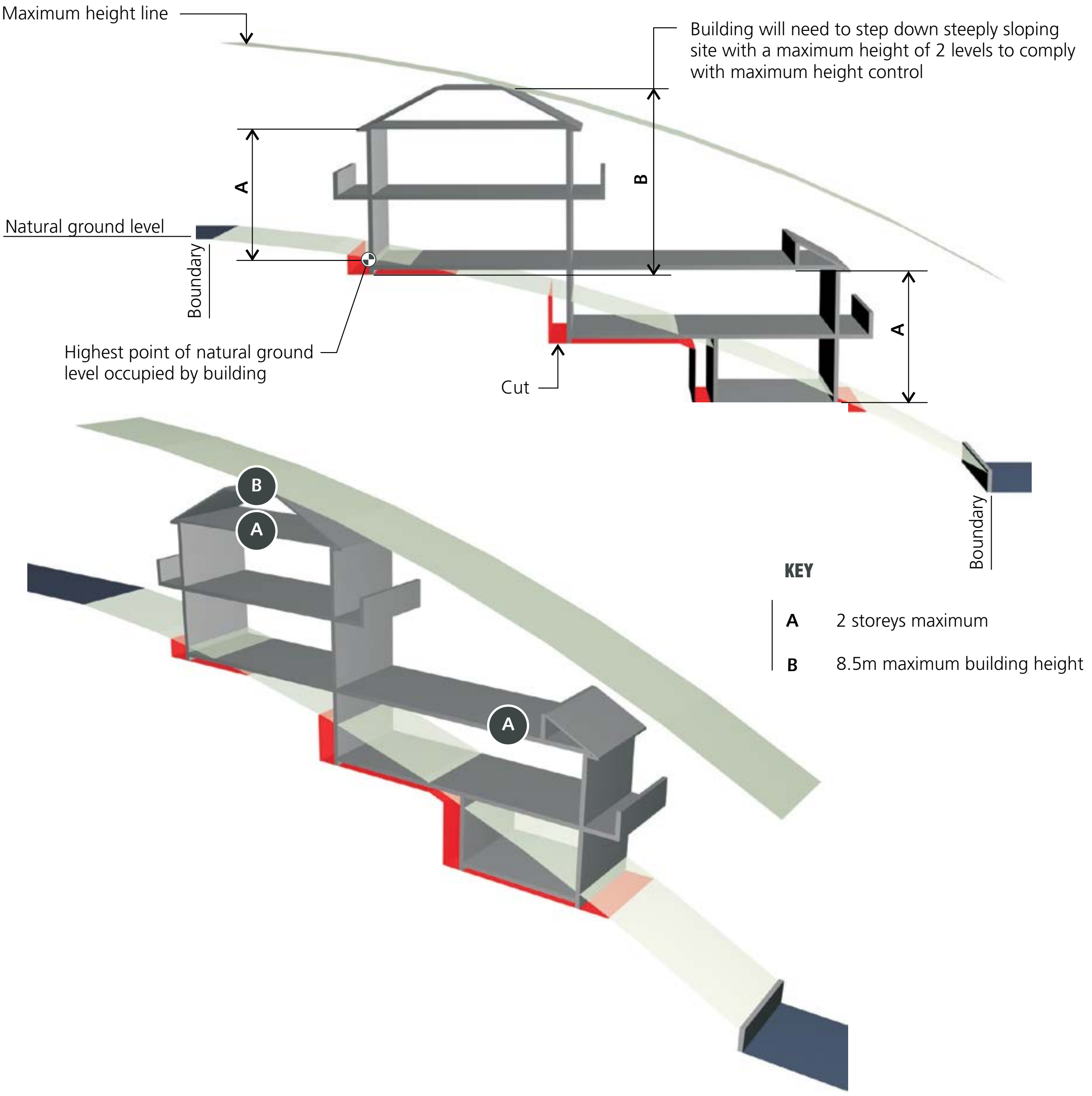

Figure E4.14 Maximum building height and maximum number of storeys on a steep site

E4.5 Bulk and Scale

Objectives

O1. To ensure that buildings are compatible with the bulk and scale of the desired future character of the locality.

O2. To minimise the effects of voids in the bulk and scale of buildings.

Controls	
C1.	Excessive void areas contribute to overall bulk and scale of a building and more likely to result in negative impacts on the amenity and character of surrounding development and the public domain. Void areas shall be justified by demonstrating necessity for specific functional outcomes of a building. Voids will not be supported when a building has an impact on the streetscape, departs from the building envelope or setback controls or has an impact on the amenity of neighbours.
C2.	Notwithstanding compliance with any relevant standards, applicants must demonstrate that the bulk and relative mass of development is acceptable in terms of the following impacts upon the street and adjoining dwellings: a) Overshadowing; b) Privacy; c) Streetscape considerations; d) Visual impact; e) Impact upon existing views; f) Impact on landscaped area and the existence of protected trees on site.

Note: Compliance with the maximum FSR and height standards does not guarantee approval if bulk and scale is considered to be excessive.

E4.6 Landscaped area

Objectives

O1. To enhance the existing streetscape.

O2. To enhance the quality & amenity of the built form.

O3. To provide privacy and shade.

O4. To minimise the extent of hard paved areas and facilitate rain-water infiltration.

O5. To preserve and enhance locally native biodiversity and habitat through appropriate connectivity planting of locally native vegetation.

O6. To provide large consolidated areas of landscaping that are usable and sustainable and that can be maintained long term.

O7. To provide sufficient landscaped area to ensure urban greening and maintain and enhance tree canopy cover.

Controls	
C1.	Landscaping that has an area of less than 1.5m x 1.5m must not be included in landscaped area calculations.
C2.	Landscaping within the side setback must not be included in landscaped area calculations.
C3.	Landscaping is to comply with controls outlined in 'Section B6 Trees and Urban Ecology', ensuring retention and addition of habitat features, and comprising locally native plants from Appendix 3 in the first instance.
C4.	Landscaped area is to be provided in accordance with Table E-A.

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Table E-A Minimum Landscaped Areas

Dwelling Type	Minimum landscape area as percentage of parent lot site area	Minimum percentage of front setback to be landscaped	Minimum percentage of rear setback to be landscaped	Minimum landscape area as percentage of parent lot site area for land located within a Biodiversity Corridor
Single dwellings	35%	50%	50%	40%
Secondary dwellings	35%	50%	50%	40%
Dual occupancies	35%	35%	50%	40%
Semi-detached dwellings	35%	35%	50%	40%

Controls	
C5.	Landscaped area percentage is to be calculated on the total site area of the parent lot and is to be distributed evenly between dwellings (where dual occupancies, semi-detached dwellings, or secondary dwellings are proposed) of a similar size with a greater proportionate distribution to larger dwellings.
C6.	Existing protected trees are to be retained and integrated into the landscaped area. Building footprints are to be located as far as reasonably possible from existing protected trees to enable retention.
C7.	Suitable replacement trees must be provided in accordance with Part B.
C8.	Canopy trees must be provided in accordance with Part B.
C9.	The majority of the front building setback and private courtyard areas of all development should comprise landscape area (as defined in this DCP), in excess of the requirements under C3, where possible. The front building setback should not include above or below ground OSD structure or any other structure that will prevent the provision of required landscape area.
C10.	If more than one dwelling is proposed and the dwellings are oriented to different frontages then the minimum percentage of front setback to be landscaped (as specified in Table E-A) is to be applied to each frontage.
C11.	Pathways and driveways are to be located a minimum of 1.0 metres from all common boundaries to allow for landscape area.

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E4.7 Parking and access

Refer to PART B - General Controls for vehicle and bicycle parking and access provisions.

E4.8 Private open space

Objectives

O1. To ensure private open space provides each dwelling with a space for outdoor activities and functions as an extension of the living area.

O2. To enhance the built environment by providing open space for landscaping.

Controls	
C1.	The provision of private open space for residential development is to be in accordance with the following table:

Type of Development	Minimum private open space area (per dwelling)	Minimum private open space dimensions (per dwelling)
Single dwellings	40m^2	5m x 5m
Dual occupancies	40m^2	4m x 4m
Secondary dwellings	40m^2	4m x 4m

Controls	
C2.	A development should locate the private open space behind the front building line.
C3.	At least one portion of the private open space with a minimum area of 40m^2 should be adjacent to and visible from the main living and/or dining rooms and be accessible from those areas.
C4.	Development should take advantage of opportunities to provide north facing private open space to achieve comfortable year round use.

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E5 Ancillary structures

E5.1 Fencing

Fencing is an important streetscape element and can indicate the architectural period of an area. Consistent and uniform front fencing contributes significantly to the streetscape and character of an area.

For the purpose of this DCP, front fencing is any fence between the front alignment of a building and the street boundary.

Whilst privacy and security of individual households is an important consideration, high blank fencing along the street has a negative impact on the streetscape, personal safety and security by reducing the opportunities for overlooking of private areas. The construction of high blank front fencing is therefore not desirable and should be avoided.

Objectives

O1. To maintain and enhance the character of streetscapes within the Canada Bay LGA.

O2. To ensure that views from streets are maintained and not negated by excessively high fences.

O3. To reduce the impact of front fencing on the streetscape and encourage fencing consistent with the existing streetscape pattern and in sympathy with the general topography and the architectural style of the existing dwelling or new development.

O4. To ensure that materials used in front fencing are of high quality and are in keeping with the existing streetscape character.

O5. To retain and re-use original fences and gates.

O6. To reinstate traditional period fences and gates on street frontages (including side streets) that is of an appropriate architectural style to complement existing buildings.

Height of front fencing

Controls	
C1.	Front fencing and side fencing forward of the building line constructed of a solid material such as brick/masonry, lapped and capped, timber, brushwood and the like should not exceed 900mm in height above the footpath level.

Refer to Figure E5.1

C2.	Front fencing and side fencing forward of the building line, constructed of visually transparent material such as timber picket/ metal grill, should not exceed 1.2m in height above the footpath level. Visually transparent components should be no less than 40% of the fence structure and should be distributed evenly along the entire length of the fence.

Refer to Figure E5.2

C3.	From the building line, side fences are to taper down to the height of the front fence line.
C4.	In the case of sloping streets, the height limitations may be averaged, with regular steps.
C5.	Solid fences greater than 1.2 m will only be considered in a streetscape which is shown in the Streetscape Character Analysis to exhibit in excess of 70% high solid fence forms. In such circumstance the appearance of the fence should be softened by: a) Providing a continuous landscaped area of not less than 600mm wide on the street side of the fence, planted with tree and shrub species selected on the basis of low maintenance attributes; and b) The use of openings and variations in colour, texture or materials to create visual interest.

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Design of fences

Controls	
C6.	Original masonry and sandstone fencing is not to be painted or rendered.
C7.	New fencing should complement any original fencing found on adjoining properties and in the street in terms of style, height, materials, colour, texture, rhythm of bays and openings. Note: Blank walls disrupt established fencing patterns and should be avoided.
C8.	Fencing and associated walls must be positioned so as not to interfere with any existing trees.

Materials

Controls	
C9.	Materials of construction will be considered on their merit, with regard being given to materials of construction of other contributory fences in the vicinity and/or that of the building on the allotment where such materials enhance the streetscape – with a general prohibition on the following materials: a) Cement block; b) Metal sheeting, profiled, treated or pre-coated. c) Fibro, flat or profile; d) Brushwood; and e) Barbed wire.

General

Controls	
C10.	Gates and doors are to be of a type which do not encroach over the street alignment during operation.
C11.	Where a fence is proposed on a secondary street for a dwelling that faces the secondary street, the fence is to be designed to comply with front fence provisions in this DCP.

Advisory Notes

All controls are subject to the provision of adequate sight lines for emerging vehicles to enable surveillance of pedestrian and vehicle traffic.

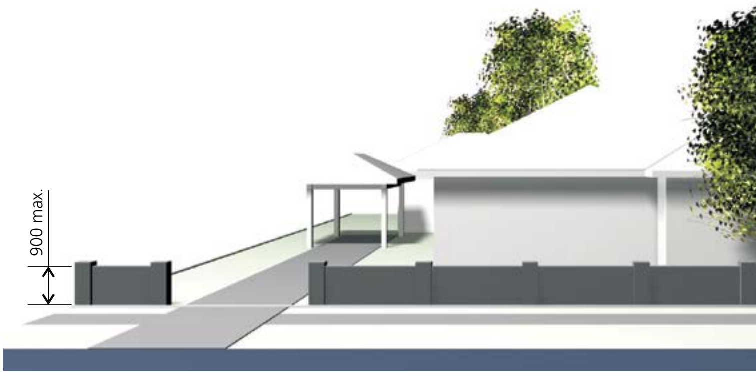

Figure E5.1 Example of solid front fencing with a height of 900mm

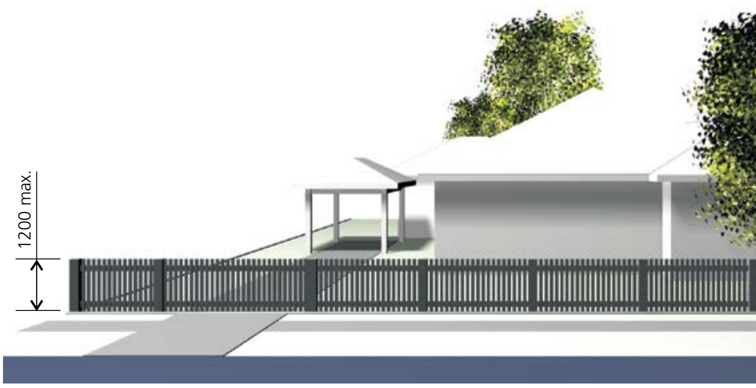

Figure E5.2 Example of open front fencing with a height of 1200mm

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E5.2 Site facilities

Site facilities include:

- Air conditioners;
- outbuildings;
- TV aerials and satellite reception dishes;
- mail boxes;
- garbage storage and collection areas;
- external storage areas;
- clothes drying areas;
- external laundry facilities and
- swimming pools and spas.

Proposals need to ensure adequate and appropriate provision of site facilities. These need to be accessible and not create amenity problems such as smell and unsightliness. The impact of site facilities on the overall appearance of the site and on the local streetscape needs to be considered.

The design of site facilities for multi-unit dwellings needs particular consideration as these facilities are shared. They need to be designed and located so that they are accessible by all residents and do not detract from the amenity of any residence.

Objectives

O1. To ensure that adequate provision is made for site facilities.

O2. To ensure that site facilities are functional and accessible to all residents.

O3. To ensure that site facilities are easy to maintain.

O4. To ensure that site facilities are thoughtfully and sensitively integrated into development, are safe, unobtrusive and not unsightly.

Air Conditioners

Controls	
C1.	Air conditioning units must be sited so that they are not visible from the street.
C2.	Air conditioning units must not be installed on the front façade of a building, within window frames or otherwise obscure a window.
C3.	Air conditioning units must not obscure architectural details visible from the street.
C4.	The noise level from air conditioning systems is not to exceed the L aeq 15 minute by 5dBA measured at the property boundary.
C5.	Air conditioning units must not be installed where they will have a negative visual or acoustic impact upon neighbours.

Outbuildings and outdoor structures

Controls	
C6.	Outbuildings and outdoor structures should be located behind the front building line. This clause does not apply to any required waste storage area, front fences or carports permissible under the provisions of this DCP.
C7.	Windows and doors of outbuildings should face into the rear yard, or be frosted, if facing into a neighbour's property.

Clothes drying facilities

Controls	
C8.	Adequate open air clothes drying facilities should be provided that are easily accessible to all residents and are visually screened from the street and adjoining premises.

Numbering of buildings

Controls	
C9.	Street numbers are to be placed on the building in accordance with Council's street numbering system and be visible from the primary street frontage.

Public utilities

Controls	
C10.	For new development and substantial alterations to existing premises provision must be made for connection to future underground distribution mains. In such developments the following must be installed: • an underground service line to a suitable existing street pole; or • sheathed underground consumers mains to a customer pole erected near the front property boundary (within 1 metre). Council may require the bundling of cables in the area surrounding the development to reduce the visual impact of the overhead cables. For further details see Energy Australia requirements.

Mail boxes

Controls	
C11.	All mail boxes should be designed in a manner that enhances the visual presentation of the building(s) they serve.
C12.	Mail box structures should not dominate the street elevation.
C13.	Individual mail boxes should be located close to each ground floor dwelling entry where individual street entries are provided.
C14.	All mail boxes must comply with the requirements of Australia Post.

Swimming pools and spas

Controls	
C15.	Swimming pools and spas should be located behind the front building line of the primary frontage.
C16.	If more than one dwelling is proposed and they are oriented to different street frontages then any swimming pools/ spas are not to be located within the front setback of any dwelling.
C17.	Swimming pools/spas should be positioned so that the water line is a minimum of 800mm from the property boundary.
C18.	In-ground swimming pools should be built so that the top of the swimming pool is as close to the existing ground level as possible. On sloping sites this will often mean excavation of the site on the high side to obtain the minimum out of ground exposure of the swimming pool at the low side.
C19.	Provided one point on the swimming pool or one side of the swimming pool is at or below existing ground level, then one other point or one other side may be up to 500mm above existing ground level.

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Tennis Courts

Controls	
C20.	Tennis courts are to be sited at the rear of properties.
C21.	For corner allotments or where the property has two street frontages, the location of tennis courts is not to be in the primary frontage.
C22.	A minimum of five (5) metres should be maintained between the tennis court fencing and habitable rooms of any dwelling.
C23.	Tennis courts should be positioned having regard to the location of habitable rooms both on site and on adjoining properties and to the maintenance of appropriate private open space.
C24.	Screen planting should be provided between court fencing and the nearest property boundary or any dwelling on an adjoining property.
C25.	The court playing surface should be of a material that minimises light reflection.
C26.	Flood lighting is generally not permitted unless it can be demonstrated the lighting and use of the court at night will not interfere with neighbour amenity.
C27.	Fencing material is to be a recessive colour.
C28.	Fences are to be set back a minimum of 1.5 metres from boundaries.
C29.	Cut and fill associated with the construction of a tennis court should not unreasonably intrude into the natural topography of the land.

TV antennae and satellite dishes

Controls	
C30.	Satellite dishes, telecommunication antennae and ancillary facilities are to be: a) Located away from the front and side boundaries; b) Installed so that they do not encroach upon any easements, rights of ways, vehicular access or parking spaces required for the property, and c) Painted in colours selected to match the colour scheme of the building.
C31.	Satellite dishes where they are situated in rear yards are to be less than 1.8m above ground.

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